WEST BENGAL: THE DADA OF BIRBHUM
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UPFRONT

CPI(M): RED IN THE MARGINS
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Illustration by RAJ VERMA

CRIMINAL PROCEDURE (IDENTIFICATION) ACT, 2022

SHOULD YOU FEAR THE NEW CRIMINAL LAW?

By Kaushik Deka

The law gives us the right over our own bodies. The inverse is true too, even if only by degrees—someone who breaks the law (and is caught) seems to lose ownership over his or her body, and therefore can be confined in prison, or even sentenced to death. Ideally, this loss is not absolute, and the degrees depend on how retributive or reformist the law is. On April 6, Parliament passed a law that dredged up some of these fundamental questions of justice. The Criminal Procedure (Identification) Act, 2022, which replaced the Identification of Prisoners Act, 1920, has put the Narendra Modi-led government on a collision course with its critics. 'Unconstitutional', 'invasive' and 'violative of privacy' were some of the words heard through the din.

What's the fuss all about? Well, the comparison is half of it. The original law gave authorities the right to record photographs, fingerprints and footprint impressions of convicts and anyone arrested for an offence punishable by a rigorous imprisonment term upwards of one year. At one level, it reflected the systematisation of contemporary forensic methods; at another, it was also a colonial law, devised in the context of a burgeoning freedom movement—102 years ago, a year after Jallianwala Bagh.

The new law takes that forensic layer and slaps on a raft of technological advancements—iris and retina scans, biological samples, behavioural attributes like signatures, handwriting and other examinations referred to in Section 53 or 53A of the Code of